



DECISION

Complaint No. : POS/360/HYD/2024

Name and address of the complainant : Mr. Abid Hussain, Government Contractor,
R/o House No. B-168, Mit Hussainabad, Latifabad No.03, Near
Indus Law College, Hyderabad.

Name of the Agency Complained against : Municipal Committee, Hala, District Matiari.

Name & Designation of Investigating Officer : Syed Muhammad Sajjad Hyder, Regional Director,
Regional Office, Hyderabad.

Vetted by : **Muhammad Naseer Jamali, Advisor-N**

Subject : COMPLAINT REGARDING ILLEGAL AWARD OF
CONTRACT WORK TENDER NIT NO.27/MCH/ENG/204
DATED 09.05.2024

Complaint

Mr. Abid Hussain filed a complaint dated 14.06.2024 wherein he stated that he had participated in the tender bearing NIT No.27/MCH/ENG/2024 dated 09.05.2024. He had fulfilled all codal formalities, deposit of call deposit amounting to Rs.100,000/- and tender fee Rs.2000/-. The agency failed to open the tenders in the presence of bidders and subsequently, the works were illegally awarded to favored contractors in violation of Rule-31 of SPPRA Rules, 2010. Being aggrieved, he solicited intervention of this Institution.

Proceedings

2. The case was admitted for investigation u/s 10 (3) of the Establishment of the office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date) after receiving mandatory Affidavit on Form "A", other relevant documents and by condoning the delay.
3. This office issued a notice vide letter dated 04.07.2024 to the Executive Engineer, Public Health Engineering Division Matiari and Chief Municipal Officer, Municipal Committee, Hala for report. In response, the Chief Municipal Officer, Municipal Committee, Hala informed vide letter dated 06.08.2024 that the notice inviting tender clearly provided for dropping and opening of tenders on 27.05.2024 at the office of the Assistant Executive Engineer, Municipal Committee, Hala. The complainant did not participate, nor submitted his tender document in the drop box. The entire procurement process was conducted in accordance with the SPPRA Rules, 2010 (amended 2017) and contracts were awarded on merit. He further added that the complainant has already sought the remedy from Complaint Redressal Committee (CRC), the relevant forum as per SPRRA law.

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4. The copy of agency's report was sent to the complainant for rejoinder vide letter dated 28.08.2024, who in response vide letter dated 05.09.2024 reiterated his previous version. Subsequently, the Chief Municipal Officer, Municipal Committee, Hala informed vide letter dated 21.02.2025 that the grievance of the complainant with regard to return of his call deposit (CDR) amounting to Rs.100,000/- has been redressed. He annexed the copy of cheque as an evidence.

Findings

5. Based on the report of agency, no mal-administration has been established against the agency.

Decision

6. In view of the above and in exercise of powers vested in me under section 11 of Establishment of the office of the Ombudsman for the Province of Sindh Act, 1991 (amended upto date), the complaint is disposed of as rejected.

Given under my hand and seal of office.



Sd /-
(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz. PAS
Ombudsman Sindh

Karachi, dated 24th February, 2026